

NAPCS Unionization Research — State — Charter School Overview
Virginia — Dual jurisdiction: Va. Code §40.1-57.2 (district CB law, 2 schools) / NLRB R5
Baltimore (5 schools) Jurisdiction — 2026-06-06
NAPCS Unionization Research • 2026-06-06 • Template v8.0

Section 1: State Overview

State	Virginia
Labor Board	Dual jurisdiction: Va. Code §40.1-57.2 (district CB law, 2 schools) / NLRB R5 Baltimore (5 schools)
Governing Law	Va. Code Ann. §22.1-212.5 et seq. (Article 1.2, Public Charter Schools) VA charter schools have variable employment models per Va. Code §22.1-212.13: school board may employ charter personnel as school board employees (at board discretion), or personnel may be charter-employed. Employment model must be determined school-by-school from the charter agreement and operational evidence.
Federal NLRB Jurisdiction	YES — NLRB R5 (Baltimore) applies to the 5 independently operated VA charter schools whose staff are charter-employed. Two schools (CLS, RCEEA) are organized under the state CB law (Va. Code §40.1-57.2) — NLRB does not apply to those schools.
Right-to-Work	Right-to-Work State — Virginia Code §40.1-58 et seq. (Virginia Right to Work Act) (Virginia has been right-to-work since 1947. Employees at any organized VA charter school cannot be required to join a union or pay dues as a condition of employment. Applies to both NLRB private employer schools and schools covered by the Va. Code §40.1-57.2 state CB framework.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	NO — Va. Code §40.1-57.2 CB framework: certification requires majority employee support in bargaining unit election. No card-check pathway under Virginia state CB law.
Registry Sweep	COMPLETE — 2026-06-06 — 7 charter schools searched
Research Window	June 2026

Section 2: Charter School Landscape

Total charter schools in Virginia: 7 (VDOE charter school page (confirmed June 2026): "There are seven public charter schools operating in Virginia." All 7 confirmed.). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
ORGANIZED / DEPENDENT	0	0.0%	Community Lab School (ACPS/AEA, CBA effective July 1, 2026) and Richmond Career Education and Employment Academy (RPS/REA, CBA July 2023–June 2026). Both organized under Va. Code §40.1-57.2 state CB law, not NLRB.
UNVERIFIED FINAL	5	71.4%	Hillsboro Charter Academy, Middleburg Community Charter School, Patrick Henry School of Science and Arts (all NLRB R5 / charter-employed). Green Run Collegiate, York River Academy (district employees but no

			operative CB framework — VBCPS and YCSD have not adopted CB resolutions).
--	--	--	---

Charter School Enrollment

Total Charter Enrollment	1,270 students — 0.1% of state K–12 enrollment (1,257,315 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	0 students (no CMO/EMO networks identified)
Students in Organized Charter Schools	209 students (16.5% of charter enrollment)
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

No charter management organizations identified in Virginia in the Charter School Registry.

Section 4: Legal Framework & Charter School Overview

Findings are based on research as of 2026-06-06.

1: Legal & Jurisdictional Framework Va. Code Ann. §22.1-212.5 et seq. (Article 1.2, Public Charter Schools) VA charter schools have variable employment models per Va. Code §22.1-212.13: school board may employ charter personnel as school board employees (at board discretion), or personnel may be charter-employed. Employment model must be determined school-by-school from the charter agreement and operational evidence. Virginia is a right-to-work state (Virginia Code §40.1-58 et seq. (Virginia Right to Work Act)). Charter schools in Virginia are subject to NLRB jurisdiction as private employers (Dual jurisdiction: Va. Code §40.1-57.2 (district CB law, 2 schools) / NLRB R5 Baltimore (5 schools)). Secret ballot NLRB election is the required organizing pathway. Card-check is not available.
2: Charter School Structure Virginia operates 7 open-enrollment charter schools, enrolling approximately 1,270 students. No multi-campus charter networks are identified in the Charter School Registry for Virginia. Approximately 7 schools operate independently with no CMO or EMO affiliation.

Section 5: Media Coverage & Public Stakeholder Positions

Legislative Context

Virginia prohibited collective bargaining by public employees from 1977 until 2020, when the General Assembly enacted HB 582. The resulting provision, Va. Code §40.1-57.2, took effect May 1, 2021 and operates as a local option: a school board may adopt a resolution authorizing collective bargaining, and only employees of that governing body are eligible for inclusion. The statute does not require a school board to adopt such a resolution and does not prescribe procedures for verifying employee

authorization; boards that have adopted resolutions have established their own verification procedures. Richmond Public Schools employees ratified agreements in 2023. Fairfax County Public Schools certified a unit covering approximately 27,500 employees across instructional and operational classifications. Prince William County and Loudoun County school boards have also adopted bargaining resolutions. Both the Virginia Education Association (NEA) and the Fairfax County Federation of Teachers (AFT) represent units under the statute. Because Virginia charter schools operate under the authority of a local school division, whether charter staff fall within a bargaining unit follows from the division's resolution and unit definition.

Section 6: Contract & CBA Access Registry

Dual jurisdiction: Va. Code §40.1-57.2 (district CB law, 2 schools) / NLRB R5 Baltimore (5 schools) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Community Lab School	Albemarle Education Association (AEA / VEA / NEA)		N/A
Richmond Career Education and Employment Academy	Richmond Education Association (REA / VEA / NEA)		N/A